

Justification and Approval (J&A) for Other Than Full and Open Competition

Was a J&A approved for the preceding acquisition where that acquisition required a J&A? ☐ Yes ☒ No

Is this a new or amended J&A Document? ☒ New ☐ Amended (Prior to Award Only!)

Is this a Bridge Action as defined at DAFFARS 5302.101? ☐ Yes ☒ No

Dollar Value of this Acquisition: ☐ ≤ \$750K ☐ > \$750K and ≤ \$15M ☒ > \$15M and ≤ \$100M ☐ > \$100M

Contracting Activity: AFLMC/GBH

Purchase Request (if available) / Local ID Number:

Program / Project (and PE, if applicable): Digital University

Program Type (PEO, Enterprise, of Operational): PEO

Authority:
6.302-1 – 10 USC 3204(a)(1), Only One Responsible Source - No Other Supplies or Services Will Satisfy Agency Requirements

Estimated Contract Cost (including options): [REDACTED] J&A Type: ☒ [Class](#) ☐ Individual
!! Provide estimated cost of all contracts.

COORDINATION ([DAFFARS 5306.304\(a\)](#))

Date 20 Mar 2024	Project Lead / Program Mgr / Requiring Activity [REDACTED] AFLCMC/GBHP / [REDACTED]	Signature [REDACTED]
Date 21 Mar 2024	Contracting Officer Evan C. Porter AFLCMC/GBKH / [REDACTED]	Signature [REDACTED]
Date 22 Mar 2024	Local Legal Reviewer [REDACTED] 66 ABG/JAT / [REDACTED]	Signature [REDACTED]
Date 01 Apr 2024	Chief of the Contracting Office (COCO) [REDACTED] AFLCMC/GBK	Signature [REDACTED]
Date 02 Apr 2024	Competition Advocate [REDACTED] AFLCMC/PK	Signature [REDACTED]

APPROVAL ([DAFFARS 5306.304\(a\)](#))

Date 25 Apr 2024	PEO / Head of Procuring Activity / Designated Alternate Mr. Alvin F. Burse AFLCMC/GB [REDACTED]	Signature [REDACTED]
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I. Agency and Contracting Activity.

The Business and Enterprise Systems Directorate, Human Resources Systems Division contracting organization (AFLCMC/GBKH), located at 1960 1st Street West, Bldg. 977, Joint Base San Antonio-Randolph, Texas 78150-4700 supports the Human Resources Systems Division Program Management Office (PMO) to fulfill the personnel operational requirements. The Human Resources Systems Division provides Automated Data Processing (ADP) engineering support and software maintenance and development for military Human Resources (HR) systems and certain civilian HR applications operating at all Air Force Bases (AFBs), Major Commands (MAJCOMs), and Headquarters Air Force (HAF).

II. Nature and/or description of the action being approved.

GBH awards contracts for the procurement of products and incidental services every year in support of PEO BES Directorate. Currently, anything outside of Air Force Licensing Agreement, an approved brand name Justification & Approval (J&A)/ Fair Opportunity Exception/ Limited Sources is required. Although each individual license order under the Digital University PMO office is generally small in dollar value, the aggregated value and number of brand-name justifications is significant as is the administrative burden of processing individual J&As for each vendor each year. The FY23 dollar value for Digital University's license procurement is just under [REDACTED] with a projected increase of [REDACTED]. This J&A will be used as a class J&A for the PEO BES Directorate in support of Digital University no matter what vehicle contracting agencies decide to use IAW policy and mission needs. This J&A will be valid from the date signed for five (5) years or until the value of contract actions using this J&A exceeds \$100M.

The BES Directorate is the Information Technology (IT) leader in the Air Force Community and Department of Defense (DoD), delivering comprehensive IT solutions and providing expert contracting, acquisition, and program management.

GBKH will track the cumulative value of contract actions awarded utilizing this J&A and it will be required to submit an in-scope determination under this J&A prior to solicitations.

III. Description of supplies/services required to meet agency needs.

Item: User/content licenses, in support of Digital University to a limited vendor pool:

Cloud Academy, Coursera, DataCamp, Hack the Box, Pluralsight, Udacity, Udemy, and Workera

Quantity: \$100,000,000.00 ceiling

Period of Performance: 1 Jun 2024 - 31 May 29 (5 Year Ordering Period)

Funding Type: O&M

IV. Demonstration that the contractor's unique qualifications or the nature of the acquisition requires use of the authority cited above.

Market research has been conducted, and it has been determined that the vendors we have under contract are the only ones that can satisfy the intermediate to advanced course-ware needs of the **Chief Digital and Artificial Intelligence Office (CDAO) Joint Artificial Intelligence (AI) Center (JAIC)**, Lead AI, Drive AI and Create AI pilot programs that could be run through Digital University. The AI course-ware and learning paths they provide can be leveraged across Digital University schoolhouses while meeting the needs of our DoD force.

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Without significant curriculum re-work Digital University has created the linkages from the Digital University platform to the various vendors platform so that all users can access curriculum.

The uniqueness of having curated content from various vendors is that they provide unique/tailored AI courseware/learning paths and were selected competitively prior to curation. Any other source outside of these vendors would result in substantial duplication of cost which could not be recovered through competition and would result in unacceptable delays in meeting the Air Force's needs. The development costs for curation of learning content or the establishment of this content on average is around [REDACTED] per occurrence which would not be cost effective for the Government.

[REDACTED]

Additionally, it could cause second or third order effects in that developers who took the same learning path, but the courses to complete that path differed, would cause a disconnect in the consistency of training and learned skills.

V. Description of efforts made to ensure that offers are solicited from as many potential sources as practicable, including whether a notice was or will be publicized as required by subpart 5.2 and, if not, which exception under FAR 5.202 applies.

The notice of the approved J&A will be published via internet at <https://www.sam.gov>. IAW with FAR 5.202, subsequent contract actions will not be publicized.

The future contracts will be delivery orders off of established and pre-priced enterprise BPAs issued by AFLCMC/GBHK.

VI. Determination by the Contracting Officer that the anticipated cost to the Government will be fair and reasonable.

The anticipated cost to the Government will be fair and reasonable as the estimated cost is largely identical to previous pricing granted to the government for the same capabilities and in comparison with similar services provided in the commercial market place. The price will be determined to be fair and reasonable based on FAR 13.106-3(a)(2)(ii).

VII. Description of the market research conducted and the results, or a statement of the reasons market research was not conducted.

Market research dated 1 Feb 2024 was conducted to gather current data on contracts procuring licenses. Based on the information discovered, the courseware accessed through Digital University from its vendors continues to be a specific requirement; as said skill and career pathways (courses required for DoD members at large to support Cloud Engineering and additional digital certifications for its employees) cannot be satisfied with any other vendors without significant re-work of existing Digital University curricula. Additionally, these vendors do not re-sell their licenses through third parties.

Market research across all existing and potential future training vendor partners has been conducted continuously since the inception of the Digital University program. Market research is ongoing because our curation content

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contractor is continuously conducting market research for content curators for the Government to meet its needs and as new contractors are brought on through Internet searches, contacting sources of known products or services, and collaborative discussion with industry experts.

VIII. Any other facts supporting the use of Other Than Full and Open Competition.

Current supported customers under this construct include: US Space Force, US Coast Guard, Department of the Air Force, and Department of the Army.

IX. List of any sources that expressed, in writing, an interest in the acquisition.

No sources sought was accomplished for this effort due to the process used in content curation for digital university. The content curation vendor solicits on a competitive basis to industry in advance of deciding on a vendor to curate. Once the content is curated, content learning licenses for that content from the content curator are purchased. Because the content curators were all selected on a competitive basis this continuation for the purchase of content licenses is a logical progression for the purchase on a source limited basis.

X. A statement of the actions, if any, the agency may take to remove or overcome any barriers to competition before any subsequent acquisitions for the supplies or services required.

HR Systems Program Office will continue to query for commercially available software products of this kind to determine if the capabilities are able to meet the government's requirements. HR Systems Program Office's Subject Matter Experts (SMEs) will also review technical publications, expositions, trend guidelines, Air Force regulations and instructions, as well as confer with other agencies and experts so that future actions may be solicited under full and open competition procedures. To the best of our abilities, all competing products available in the current market have been evaluated prior to purchasing this solution, and were not feasible for incorporation into the current architecture at this time. As new trends formulate in production, the HR Systems Program Office will continue to inquire about these User Licenses, and research ways to develop, test and integrate them if possible.

XI. Certification by the Contracting Officer.

As evidenced by my signature above, I certify that this justification is accurate and complete to the best of my knowledge and belief.

XII. Certification by the technical/requirements personnel.

As evidenced by my (our) signature(s) above, I (we) certify that any supporting data contained herein, which is my (our) responsibility, is both accurate and complete.